DEPARTMENT OF HEALTH &. HUMAN SERVICES

Public Health Service

Indian Health Service
Phoenix Indian Medical Center
4212 North 16th Street
Phoenix, Arizona 85016

MEMORANDUM

DATE: June 25, 2025
TO: Debra Ward Lund, Chief Executive Officer
FROM: Hon. Kevin D. Turnage, MSN Ed., RN
SUBJECT: Request for Written Direction Regarding PolicyStat Compliance with IHM Transmittal Notice 24-16

Dear Ms. Ward Lund,

This memorandum serves as a formal request for written direction regarding compliance with federal policy review requirements established under the **Indian Health Manual (IHM)** and **Transmittal Notice 24-16**, effective October 24, 2024.

Policy Definition and Applicability

Per **IHM Part 1, Chapter 1, Section 1-1.1(E)**, a *directive* is defined as:

"An official high-level standard or principle governing procedures, decisions, and actions within the IHS, signed by the Director, IHS; Area Director; or SU Chief Executive Officer (CEO). Also known as policy and is inclusive of IHM Parts and Chapters, Circulars, Special General Memorandums (SGMs), and Delegation of Authorities (DOAs)."

This definition confirms that all formal IHS policies and procedures—such as those stored and managed in **PolicyStat**—are classified as **directives**, and therefore governed by all applicable federal policy lifecycle requirements.

Governing Federal Requirements

Transmittal Notice 24-16 amended **IHM § 1-1.2K(4)** to state:

"Directives must be reviewed at least every 2 years by the originating office. Directives that are not reviewed within 2 years shall be considered non-compliant and subject to revision or rescission."

In addition, **IHM Part 1, Chapter 1, Section 1-1.6(B)(2)** provides:

"If a policy has not been reviewed and/or updated within 24 months from the date of issuance or last review, the policy must be rescinded or inactivated until reviewed and reissued, if still valid."

Together, these provisions impose a binding obligation on all IHS entities, including Phoenix Indian Medical Center (PIMC), to conduct **biennial policy reviews** and to inactivate or revise any directive that exceeds the 24-month limit without review. This also requires updating all associated metadata in **PolicyStat** to reflect a two-year policy review cycle.

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Administrative Risk Without Written Exemption

Although I received an email from Dr. Endreya McCabe on June 13, 2025, stating that IHS Headquarters has not yet mandated full implementation of Chapter 1, Part 1 across all Service Units, **no written exemption or formal directive** has been issued relieving me or PIMC of its obligation to comply with TN 24-16.

In the absence of such documentation, continuing to operate under a non-compliant three-year policy review cycle may:

- Constitute a violation of **federal policy** issued by the IHS Director;
- Conflict with **OMB Circular A-123** requirements for internal control;
- Create exposure to compliance findings in oversight audits or accreditation reviews;
- Raise professional accountability concerns for designated policy officer, myself.

Request for Written Instruction

Accordingly, if it is the official position of PIMC leadership that the federally mandated two-year policy review cycle is not to be implemented at this time, I respectfully request **written instruction, signed by you**, confirming that position, including the **legal or regulatory authority** supporting the decision to defer or decline compliance with **IHM Transmittal Notice 24-16**.

This request is submitted in the interest of administrative transparency, protection of institutional and individual accountability, and to maintain proper compliance with all governing federal directives.

Respectfully,

Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™
Policy and Procedure Officer (PX3147)
Phoenix Indian Medical Center
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cc:

- **Division of Regulatory and Policy Coordination (DRPC)**, Office of Management Services, IHS Headquarters
- **Office of Management Services (OMS)**, IHS Headquarters

This memorandum is submitted in good faith in accordance with my duties and responsibilities as a federal employee and designated Policy and Procedure Officer. Nothing herein should be construed as insubordination or personal grievance. Should adverse personnel action result from this memorandum, I reserve the right to seek protections under the **Whistleblower Protection Act** (5 U.S.C. § 2302), which prohibits retaliation for disclosing evidence of noncompliance with federal law, rule, or regulation.